

Presolicitation Notice

SUBJECT* Baltimore VAMC Wheelchair Van Transportation Services

GENERAL INFORMATION

CONTRACTING OFFICE'S ZIP CODE*	21090
SOLICITATION NUMBER*	36C24526Q0162
RESPONSE DATE/TIME/ZONE	01-04-2026 13:00 EASTERN TIME, NEW YORK, USA
ARCHIVE	30 DAYS AFTER THE RESPONSE DATE
SET-ASIDE	SDVOSBC
PRODUCT SERVICE CODE*	V212
NAICS CODE*	485991
PLACE OF PERFORMANCE	Baltimore VAMC 10 N Greene St Baltimore MD
POSTAL CODE	21201
COUNTRY	USA

CONTACT INFORMATION

CONTRACTING OFFICE ADDRESS	Department of Veterans Affairs VISN 5 Contracting 849 International Drive Linthicum MD 21090
POINT OF CONTACT*	Contract Specialist Dan Feng Lu danfeng.lu@va.gov

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DESCRIPTION

Please note the Government intends to issue the solicitation for Wheelchair Van Transportation Services at Baltimore VA Medical Center when it is available.

The anticipated performance period is for five years, from 07/01/2026 – 06/30/2031. This requirement is a 100% percent set-aside for Service Disabled Veteran Owned Small Business (SDVOSB) concerns under the authority of 38 U.S.C §8127 (d). Only those SDVOSBs listed and viewable in the Small Business Administration (SBA) database located at <https://search.certifications.sba.gov>. The SBA database will be checked at the time of offer submission as well as prior to award. The awarded contractor must also submit evidence of enrollment with VETS4212 in order to receive award.

The resultant contract will be a 5-year commercial Firm Fixed Price, Shared Capacity, Multiple award Indefinite Delivery / Indefinite Quantity (IDIQ) Contract.

All contractors have to be registered in the SAM Database <https://www.sam.gov> prior to contract award pursuant to FAR provision 52.204-7. Therefore, prospective offerors are encouraged to register prior to the submittal of quotations.

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PERFORMANCE WORK STATEMENT

1. **Purpose:** The Baltimore VAMC VA Medical Center (hereafter VAMHCS), its associated Community-Based Outpatient Clinics (CBOCs), and affiliated healthcare clinics require contracted non-emergent wheelchair transportation services. The contractor shall provide all vehicles, personnel, management, supplies, equipment, and necessary reporting for the provision of **non-emergent wheelchair transportation services**. The contractor shall make these non-emergent wheelchair transportation services available to the VA as needed, 24 hours a day, seven days a week (24/7), including weekends and holidays.
2. **Background:** The (Baltimore VAMC) main campus is located 10 N. Greene Street, Baltimore MD. 21201, serving over 57,000 veterans, primarily from the Maryland/Washington area and it's Community-Based Outpatient Clinics. The hospital has 530 inpatient beds and sees approximately inpatient admissions and 800,000 outpatient visits a year. Veterans served within this facility live within the following counties and zip codes.

County	Zip Code	County	Zip Code	County	Zip Code
Washington, DC	20011	Fowbelsburg, MD	21155	Baltimore, MD	21228
Washington, DC	20032	Upperco, MD	21155	Catonsville	21228
Washington, DC	20422	Upper Falls, MD	21156	Carroll, MD	21229
Charlotte Hall, MD	20622	White Marsh, MD	21162	Morrell Park, MD	21230
Fort Meade, MD	20755	Baltimore, MD	21201	Baltimore, MD	21231
Greenbelt, MD	20770	Baltimore, MD	21202	Baltimore, MD	21234
Silverspring, MD	20910	Baltimore, MD	21204	Loch Raven Village, MD	21234
Aberdeen, MD	21001	Eudowood, MD	21204	Parkville, MD	21234
Baldwin, MD	21013	Ruxton, MD	21204	Parkville, MD	21234
Boring, MD	21020	Towson, MD	21204	Baltimore, MD	21236
Brooklandville, MD	21022	Baltimore, MD	21205	Nottingham, MD	21236
Butler, MD	21023	Raspeburg, MD	21206	Baltimore, MD	21237

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Chase, MD	21027	Baltimore, MD	21207	Rosedale, MD	21237
Cockeysville Hunt Valley, MD	21030	Gwynn Oak, MD	21207	Northwood, MD	21239
Cockeysville Hunt Valley, MD	21031	Woodlawn, MD	21207	Baltimore, MD	21244
Fork, MD	21051	Baltimore, MD	21208	Windsor Mill, MD	21244
Fort Howard, MD	21052	Pikesville, MD	21208	Baltimore, MD	21251
Freeland, MD	21053	Mt Washington, MD	21209	Baltimore, MD	21282
Garrison, MD	21055	Roland Park, MD	21210	Pikesville, MD	21282
Glen Arm, MD	21057	Baltimore, MD	21211	Baltimore, MD	21284
Glen Burnie, MD	21061	Govans, MD	21212	Loch Raven, MD	21284
Glyndon, MD	21071	Clifton, MD	21213	Towson, MD	21284
Hydes, Md	21082	Baltimore, MD	21214	Baltimore, MD	21285
Bradshaw/Kingsville, MD	21087	Arlington, MD	21215	Towson, MD	21285
Long Green, MD	21092	Baltimore, MD	21216	Baltimore, MD	21286
Timonium/Lutherville, MD	21093	Druid Park, MD	21217	Loch Raven Village, MD	21286
Timonium/Lutherville, MD	21094	Baltimore, Md	21218	Towson, MD	21286
Maryland Line, MD	21105	Baltimore, MD	21218	Baltimore, MD	21287
Hereford/Monkton, MD	21111	Baltimore, MD	21219	Annapolis, MD	21401
Owings Mills, MD	21117	Sparrows Point, MD	21219	Cumberland, MD	21502
Bentley Springs, MD	21120	Baltimore, MD	21220	Cambridge, MD	21613
Parkton, MD	21120	Middle River, MD	21220	Hagerstown, MD	21742
Perry Hall, MD	21128	Baltimore, MD	21221	Pocomoke, MD	21851
Jacksonville, MD	21131	Essex, MD	21221	Perry Point, MD	21902
Phoenix, MD	21131	Baltimore, MD	21222	Elkton, MD	21921
McDonogh Run, MD	21133	Dundalk, MD	21222	Alexandria, VA	22310

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Randallstown, MD	21133	Franklin, Md	21223	Winchester, VA	22602
Reisterstown, MD	21136	Highlandtown, MD	21224	Harrisonburg, VA	22801
Riderwood, MD	21139	Brooklyn, MD	21225	Martinsburg, WV	25401
Glencoe, MD	21152	Curtis Bay, MD	21226	Martinsburg, WV	25405
Sparks, MD	21152	Arbutus, MD	21227	Huntington, WV	25704
Stevenson, MD	21153	Baltimore, MD	21227	Beckley, WV	25801
Halethorpe, MD	21227	Lansdowne, MD	21227	Clarksburg, WV	26301
				Franklin, WV	26807

3. Acronyms:

AOD – Administrative Officers of the Day
 CO – Contracting Officer
 COR – Contracting Officer’s Representative
 DOL – Department of Labor
 IAW – In Accordance With
 OO – Ordering Officer
 PWS – Performance Work Statement
 QASP – Quality Assurance Surveillance Plan
 QCP – Quality Control Plan
 TB – Tuberculosis
 TJC – The Joint Commission
 VTS – Veteran Transportation Service

4. Scope/Requirements:

4.1. Types of Non-Emergent Wheelchair Transportation Service:

- 4.1.1. The contractor shall provide Non-Emergent Wheelchair Transportation Service as-needed basis IAW all federal, state, and local regulations.
- 4.1.2. Occasionally a veteran will need to be transported with VA staff and equipment; the contractor shall return VA Staff and equipment to the original place of pick-up.

4.2. Transport of Miscellaneous Items with the Patient:

The Contractor may also be required to transport patient luggage (one – no more than 20 pounds), medical records, medication, and comfort items from pickup points to destination at no additional cost to the Government. Luggage to be transported will be restricted to suitcase and valise types. When patients are transported to the (Baltimore VAMC), destination is deemed to be the ER, Admissions, the clinic, or

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service within the hospital, or directly to the ward as instructed by VA Staff. All patient records transported with the patient are confidential in accordance with HIPPA.

- 4.3. Contractor Personnel: Contractor personnel shall be courteous and always conduct themselves in a businesslike manner while providing services under this contract.

4.3.1. Non-Emergent Wheelchair Transport Drivers & Other Personnel

- 4.3.1.1. Non-emergent wheelchair van transport drivers shall at all times meet the qualifications specified in this contract as well as all applicable federal, state, and local government laws, regulations, and standards.
- 4.3.1.2. If the contractor wishes to add or replace personnel throughout the life of the contract, it shall provide evidence of required training, certifications, licensing, and any other qualifications to the Contracting Officer's Representative (COR) for review.
- 4.3.1.3. All wheelchair transport drivers shall have a valid driver's license IAW state requirements for their place of operation and the services they perform. If the contractor wishes to add or replace drivers throughout the life of the contract, it shall provide a valid driver's license to the COR.
- 4.3.1.4. Investigative Requirements for Contract Personnel: Contract personnel will be subject to the same investigative requirements as those for regular VA appointees and employees. The level of investigation commensurate with the level of access to perform the performance work statement is: Special Agreement Checks (SAC). Fingerprinting for contract personnel will be conducted at (Baltimore VAMC). Thereafter the contracted employees will be subject annually to the same requirement, with a 90-day window to complete such requirement as provided by (Baltimore VAMC). The Workforce Management and Consulting, Human Resource Operation Office, Personnel Security Contracting Team (WMC HROO PerSec Contracting Team) is responsible for adjudicating all background investigations for contract employees.

4.3.2. Tuberculosis Exposure Control Policy

- 4.3.2.1. The contractor shall provide the VA with a policy on tuberculosis (TB) exposure and control, to include TB decontamination, within 5 business days upon award of contract by the Government.
- 4.3.2.2. The contractor shall have its personnel tested for TB IAW state guidelines and provide written confirmation to the COR that all personnel (current employees and any new hires) performing services under this contract are current in their TB test at the start of each Ordering Period.

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4.4. Contractor Equipment, Vehicles, and Inspection:

- 4.4.1. Wheelchair vans shall meet all applicable federal, state, and local regulations and specifications, including but not limited to licensing, registration, and safety standards.
- 4.4.2. Wheelchair vans shall be safe and comfortable transportation of Veterans. It's essential that ample headroom must be available for Veterans transported in standard wheelchairs. Any type or style offering complete Veteran safety within the vehicle will be acceptable. Those considered lacking in this essential requirement will not be used for Veteran transport under this contract. Any replacement will be at the Contractor's expense.
- 4.4.3. The VA reserves the right to inspect the contractor's equipment and vehicles or require documentation of compliance with state laws, rules, regulations, and guidelines governing non-emergent medical transport vehicles. VA inspections of contractor equipment do not constitute a warranty or guarantee that the contractor's vehicles and equipment are properly maintained. The VA reserves the right to restrict the contractor's use of equipment and vehicles in the performance of this contract that are not in compliance with contract requirements. The restriction of such equipment and vehicles shall not relieve the contractor from performance IAW the contract nor necessitate additional cost to the VA.
- 4.4.4. Each vehicle must be equipped with a general-use first aid kit.
- 4.4.5. Vehicles shall be clean and maintained in good repair IAW the manufacturer's instructions.
- 4.4.6. The contractor shall not be permitted to borrow medical equipment from the Baltimore VAMC medical facilities. Contractor shall at no time and under any circumstances exchange supplies, equipment, and/or medications with VA. The prices quoted in the Schedule shall be inclusive of consumables used in transport.
- 4.4.7. Contractor shall always have a wheelchair available for the transport of Veterans from the pickup point to the delivery point. When the Veteran is delivered to a destination other than the Department of Veterans Affairs and the return trip is ordered for the same day, the Veteran will transfer from the contractor's wheelchair to a facility-owned wheelchair. Veterans with scooters must only be transported in a regular passenger seat or in a wheelchair that can be safely strapped and locked down, and which provides for a seat belt for the passenger. Veterans requiring transport in a motorized scooter will transfer to a seat in the vehicle, with the scooter being transported with the Veteran as personal belongings at no additional cost to the VA.

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4.4.8. The contractor shall furnish qualified personnel as required by contract specifications to accomplish all services under this contract.

4.4.8.1. The contractor personnel performing services for the VA, shall, at all times, conduct themselves in a professional manner, and be identified by having the company name, and employee name affixed to the uniform. The Contractor shall be responsible for furnishing all vehicles, uniforms, nametags and/or badges for performance of services under this contract. Employee identifications shall be worn in clear view above the waist. The contractor personnel shall not smoke/play loud music originating from any device in vehicles while transporting VA patients.

4.4.8.2. Each driver shall possess a driver's license that is valid for the class of vehicle driven. Evidence of a special transportation service vehicle permit, or endorsement issued by the commissioner of public safety.

- Be at least 18 years of age and have not less than one year of experience as a licensed driver; and
 - For the past three years:
 - Have not had a driver's license canceled or suspended.
 - Have a driving record clear of convictions for operating a motor vehicle or motorcycle without insurance.
 - Have a driving record clear of convictions for driving a motor vehicle without a valid current license for the class of vehicle driven
 - Have a driving and criminal record clear of convictions for driving under the influence of alcohol or a controlled substance.

4.4.8.3. Responsibilities for Veteran safety will include the availability and appropriate use of Veteran restraining devices in each transport vehicle. The Contractor staff will adequately restrain the Veteran through every phase and during each movement to prevent injury to the Veteran. The need for additional staff to manage the Veteran in transport will be established before initiating the transport.

4.4.8.4. The driver will (within safety and reason) observe the Veteran during transport. Any indication of significant change in condition (i.e. sudden onset of rapid or labored respirations, complaints of chest pains) will be immediately communicated to the Medical Center Admitting office. Depending on the condition of the Veteran, the Veteran will be returned to the Admitting Office, transported to the nearest emergency room or advanced life support called.

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4.4.8.5. Wheelchair van drivers shall be capable of administering oxygen and shall have completed the standard and advanced first aid course of the American Red Cross or equivalent. They must be capable of providing necessary medical assistance to the attending emergency medical technician or paramedic. It is the vendor's responsibility to provide a copy of the first aid certificates for all employees to the Contracting Officer Representative (COR) upon request.

4.5. Transportation Request:

4.5.1 VetRide or VA-approved Transportation Software Utilization:

The contractor agrees to utilize the VetRide Vendor Portal or VA-Approved Transportation Software with every patient transported under this contract.

Department of Veteran Affairs will provide the software and access to the VetRide Vendor Portal or VA-Approved Transportation Software for the vendor/contractor in this contract. The Contractor will utilize the VetRide Vendor Portal or VA-Approved Transportation Software fully as instructed:

- a) Receive and respond to electronic trip requests.
- b) Receive, use, and ensure the use of the Vendor pass by the driver.
- c) Submit claims via the electronic HCFA 1500 in the VetRide Vendor Portal or VA-Approved Transportation Software system.
- d) All invoices must be submitted within 30 calendar days of date of service IAW 38 CFR 70 to be considered timely submission.
 - i. The contractor's invoice must be on the HCFA 1500 to include:
 - ii. Contract Number
 - iii. Date of Service (to include Box 24 A-J)
 - iv. Authorization number(s)
 - v. Pick-up and drop-off location of the patient
 - vi. Base Rate
 - vii. Name (Last, First and Middle Initial (if any)) and Full Social Security number (Box 1a) of patient transported
 - viii. Date of Birth and Sex
 - ix. Diagnosis Codes or Nature of Illness or Injury
 - x. Documentation of circumstances when billing for waiting time
 - xi. Any miscellaneous charges for which the contractor is expecting reimbursement i.e., Tool charges, waiting time, etc.
 - xii. VA authorizing official's name
 - xiii. Healthcare Procedure Coding System/National Level II (HCPCS)
- e) Unauthorized charges will be reviewed by the Contracting Officer Representative (COR) as to the validity of the charges and as to whether the payment will be made. A final determination will be made within 30 days after notifying the Contractor of the charges that are being suspended.

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4.5.1.1. A transportation request is defined as one incidence of a request for one-way service non-emergent wheelchair van transport. No more than one patient will be transported per order unless approved by an authorized VA staff. Transportation requests will be made through VetRide or VA-Approved Transportation Software Utilization. Contractors must have dedicated staff available to monitor this portal 24/7. (Baltimore VAMC) Travel Program Staff will be available to assist with account setup and training for the Contractor's Staff.

4.5.1.1.1. In the event VetRide or other VA-Approved Transportation Software Utilization is down, other methods of communication (i.e., telephone, facsimile) will be used to place Transportation requests. (Baltimore VAMC) Travel Program Staff/or authorized VA employees will work with the Contractor the following business day to reconcile any transportation requests that were placed outside of VetRide or VA-Approved Transportation Software Utilization.

4.5.1.1.2. The Contractor must update VetRide or VA-Approved Transportation Software Utilization with any data and/or notes in real time that deviate from the original order such as invoicing for additional mileage due to a road closure, wait time, reason for no load, etc. (Baltimore VAMC) Travel Program Staff/or authorized VA employees may place a "hold" on payment of this order until it has been reconciled.

4.5.1.2. Only the following VA staff are authorized to place, cancel, or make changes to transportation requests:

Contracting Officer (CO)
Ordering Officers (OO)
Administrative Officer of the Day (AOD)
Beneficiary Travel Office Staff
Contracting Officer's Representative (COR)

The Contracting Officer will furnish the Contractor with the names of individuals who are authorized, according to the list above, by a separate memorandum upon issuance of the contract. The Contracting Officer will update this memorandum throughout the life of the contract as personnel change.

Ordering Officers are responsible for issuing and administering orders placed under this contract. Ordering Officers have no authority to modify any term of this basic contract. Any deviation from the terms of the basic contract must be approved in writing by the Contracting Officer responsible for this contract. The Contractor shall accept orders against this contract only from individuals listed on the memorandum issued by the Contracting Officer. Fulfilling orders from persons other than the individuals listed may

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result in loss or delay in payment for supplies/services provided under such orders.

Non-authorized VA employees and private agencies (e.g., nursing homes) are not considered authorized to place transportation requests.

- 4.5.1.2.1. All patient pick-up(s) and drop-off(s) shall be authorized via “orders” which shall only be issued by the Contracting Officer or designated Ordering Officers. When placing orders for services, the Ordering Officer shall contact the designated contractor point of contact(s) to provide the following information:
- Mode of transportation required,
 - Required time of arrival
 - Name of the beneficiary,
 - Pick-up and delivery point,
 - Type and number of additional medical care specialists required,
 - Type of equipment required,
 - Last four of the patient's Social Security Number, and
 - Any other special instructions.
- 4.5.1.3. For ALL Transports – an Audit system will be put in place by the VA to include the COR or designee, Beneficiary Travel Department staff, and clinical staff to ensure appropriateness of the order and timeliness of the response.
- 4.5.1.4. The VA may authorize an escort (e.g., spouse, relative, guardian, etc.) to accompany the patient during medical transport if it is practicable and, in the patient's best interest. The contractor shall allow the escort to accompany the patient at no additional cost.
- 4.5.1.5. The Contractor shall be responsible for providing all vehicles and manpower necessary to meet all wheelchair van transport requirements of this contract. The Contractor will be authorized to utilize another company, as a subcontractor (certified to be within all requirements of this contract), to complete these transportation requests. All bills for this subcontractor service will be paid directly to the Contractor at the contract rate, and the Contractor shall reimburse the subcontractor at their agreed to rate. In the event the Contractor is unable to perform services or have services performed as required, the Contractor shall immediately notify the VA Travel Section and provide a justification for non-performance. The VA reserves the right to re-procure services, which cannot be performed by the Contractor, IAW the terms, conditions, and schedule of this contract. The Contractor shall indemnify the VA for excess re-procurement costs, which may result from the Contractor's inability to perform the required service. Payment of re-procurement costs shall not relieve the Contractor from any other provision in this contract covering inspection, acceptance,

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and deductions from payment. The VA will be the sole judge in determining when services will be re-procured. The failure of the Contractor to perform services within the required time frames and IAW terms and conditions may also provide cause for termination of the contract for "cause" (see FAR clause 52.212-4(m)).

4.5.1.6. The patient may bring up to three (3) liters of oxygen. The Contractor shall be responsible for providing adequate and safe storage of the oxygen tanks during transport.

4.5.1.7. Response Times*

- 4.5.1.7.1. Orders that are scheduled by 7pm local time the day before the required services are defined as scheduled in advance. With the exceptions found below, the contractor shall arrive on time for all orders scheduled in advance.
- 4.5.1.7.2. For all add-ons (not scheduled in advance) transportation requests, with pick-up at (Baltimore VAMC): The contractor will be allotted up to a thirty (30) minute response time from time of order placement of the transportation requests.
- 4.5.1.7.3. For transportation requests which do not have a pick-up at (Baltimore VAMC):
 - a. The contractor may be required, if requested by the VA, to dispatch wheelchair van(s) on short notice for transportation requests not scheduled in advance; for these transportation requests, the contractor shall dispatch wheelchair van(s) within thirty (30) minutes of receiving the order.
 - b. Pick-up appointment times shall be agreed upon by the VA and contractor at time of order placement and be reasonable based upon travel distance, speed limits, and weather conditions.
 - c. The contractor's patient pick-up time cannot be more than 15 minutes before the scheduled pickup time, nor 15 minutes later than the scheduled pickup time for transportation requests scheduled in advance.

* The contractor shall not be held liable for nonperformance caused by an occurrence beyond the reasonable control of the contractor and without its fault or negligence such as, acts of God or the public enemy, acts of the Government in its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, and unusually severe weather.

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The contractor MUST notify the VA with as much advance notice as possible should any of these occur.

4.5.2. Cancellations

4.5.2.1. For trips in which the contractor is notified of cancellation before the vehicle is dispatched, there shall be no charge to the Government.

4.5.2.1.1. A “no show” is defined as a transportation request which is cancelled after the contractor has dispatched a vehicle, the vehicle is enroute, or has arrived at the pick-up location, and there is no longer a requirement for patient transportation. The contractor may request one-way reimbursement for no-shows. No-show reimbursement shall be based upon the base rate for non-emergent wheelchair transport, and the one-way mileage accrued enroute to the pick-up location at time of cancellation. Mileage for no-show cancellations shall be confirmed by the contractor and reported to the VA as soon as possible from time of cancellation.

4.5.2.2. For transportation requests OUT of (Baltimore VAMC) ONLY – The contractor will immediately dispatch a vehicle upon receipt of the order. When the contractor is notified of a cancellation before arrival at the (Baltimore VAMC) campus, there shall be no charge to the Government.

4.6. Pick-Up/Drop-Off/Reporting Procedures:

4.6.1. The Veteran will be delivered to and picked up from the assigned appointment location. (For example, the (Baltimore VAMC) Medical Center nursing stations, wards or units, clinics, private home, or community nursing home.) All patients shall be attended by an authorized responsible party at all times. Assistance in maneuvering stairs and other barriers shall be provided by the driver and/or authorized attendant when necessary. These services may need to be provided within or outside the home (i.e., from the door to the vehicle. When the patient is delivered to a destination (i.e., a clinic or other appointment), an authorized care giver or medical staff at the destination must be informed of the patient’s arrival by the Contractor’s driver or authorized attendant.

4.6.2. All Veterans will be checked in and out with the appropriate administrative staff. Veterans must be checked in by their appointment time and picked up in a timely fashion after their schedule appointment.

4.7. Patient Welfare:

4.7.1. The contractor shall be responsible for the patient’s welfare during transport. The contractor shall be held responsible for patient and/or VA

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property during transport. Any damaged or lost wheelchairs, walkers, crutches, or personal belongings shall be replaced at the contractor's expense.

- 4.7.2. The VA requires the contractor to exercise extreme caution and care in the handling of patients.
- 4.7.3. If a VA beneficiary being transported declines to be properly secured or removed the securement devices himself/herself, the driver will notify the Contracting Officer's Representative (COR) of this fact prior to departure. The contractor is not required to transport any VA beneficiary who refuses to be properly secured while being transported. In the event that the beneficiary refuses to be properly secured, they shall be returned back into the building which they came from.

4.8. Incident Reporting:

- 4.8.1. The contractor shall notify the COR, Requestor, Program Manager, Beneficiary Travel Department, of any accidents and/or safety problems that occur while the patient is being transported. This notification shall occur within one (1) hour by telephone. A written report of the incident shall be delivered to the COR, Program Manager, or Beneficiary Travel Department, by the close of business of the next working day.
- 4.8.2. The COR will monitor the service provided. The contractor shall cooperate with the COR in providing information and answering questions in a timely manner. The contractor shall promptly inform the COR of any complaints received directly from patients. If warranted, the VA may conduct incident investigations and require written response from the contractor within 48 hours of request.

4.9. Invoicing:

- 4.9.1. Each transport shall include thirty (30) minutes of wait time; the contractor may invoice for wait times in excess of this initial thirty (30) minutes. Wait time shall begin only once the contractor has both reached the pick-up address location and the appointment time has elapsed. All wait times shall be itemized and invoiced in fifteen (15) minute intervals. For partial fifteen (15) minute intervals, zero (0) to seven (7) minutes shall be rounded down to zero (0) minutes and eight (8) to fifteen (15) minutes rounded up to fifteen (15) minutes.
- 4.9.2. When invoicing for mileage, the contractor shall round to the nearest mile. Mileage ending in .5 or higher shall be rounded up to the nearest mile. Mileage ending in .4 or lower shall be rounded down to the nearest mile. Payment for mileage to or from the point of care shall be limited to the VA's calculation

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according to the VA's Bing Maps API determination. Bing Maps API is optimized to determine mileage based on the shortest time of travel.

- 4.9.3. Long Distance Mileage — Payment for mileage outside the contract miles covered in the base rate, shall be at the mileage rate stated in the price schedule, and shall be based upon the miles from the pick-up point and the specified destination. Any mileage from the place of business and/or location of vehicle and the pick-up point, or from the delivery destination back to the place of business and/or location of next trip are not considered as a separate item of this reimbursement but would be expected to be incorporated into the mileage rate as part of the administrative costs (or costs of doing business).
- 4.9.4. Upon notification of the contracting officer, the vendor must receive training and begin implementation of invoices via VetRide within 30 days versus VA Tungsten Network e-Invoicing network. Invoices must be submitted via the electronic HCFA 1500 in the VetRide Vendor Portal or other VA approved software. These invoices shall not include patient information, but shall include the following:
- Contractor Name
 - Contract Number
 - Current Purchase Order Number
 - Date of service
 - Total amount invoiced including a summary of the total number of charges that align with the line items of this contract (i.e., total number of Non-Emergent Wheelchair Base Rate, total mileage incurred in excess of the base rate, etc.)
 - An itemized list of charges or services rendered that align with the line items of this contract (i.e., Non-Emergent Wheelchair Base Rate, Mileage incurred outside the base rate, etc.)

Payment by VA under this contract to a provider of non-emergent wheelchair transportation services authorized under this contract extinguishes any and all liability on the part of the VA BENEFICIARY for that transportation service. UNDER NO CIRCUMSTANCES ARE VA BENEFICIARIES, THIRD PARTY INSURANCES, MEDICARE, OR MEDICAID TO BE BILLED FOR THE SERVICES PERFORMED UNDER THIS CONTRACT.

5. Period & Place of Performance:

- 5.1. This contract's ordering period shall be effective from Date of Award through 2031.
- 5.2. The Place of Performance is variable and may occur within the states of Maryland, Virginia, West Virginia; non-emergent wheelchair transportation services may be required to or from locations including, but not limited to the following:

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5.2.1. (Baltimore VAMC) VA Medical Center to include specific Atrium Clinics, Emergency Department, pavilions, or out-buildings on the (Baltimore VAMC) campus. The (Baltimore VAMC) address is: 10 N. Greene Street, Baltimore, MD. 21201.

5.2.2. (Baltimore VAMC) Community-Based Outpatient Clinics (CBOCs):

<u>CBOC Name</u>	<u>Address</u>
Pocomoke City VA Clinic	1701 Market St, Pocomoke City, MD 21851
Cambridge VA Outpatient Clinic	<u>830 Chesapeake Dr. Cambridge, MD 21613</u>
<u>Glen Burnie VA Outpatient Clinic</u>	<u>808 Landmark, Dr, Glen Burnie,MD. 21061</u>
<u>Fort Meade VA Outpatient Clinic</u>	<u>2479 5th st, Fort Meade, MD 20755</u>
<u>Eastern Baltimore County VA Outpatient Clinic</u>	<u>5235 King Ave, Suite 200, Rosedale, MD. 21237</u>

5.2.3. Other VA Locations within Veterans Integrated Service Network (VISN) 5 including, but not limited to:

<u>Medical Center Name:</u>	<u>Address:</u>
<u>Louis A Johnson Medical Center</u>	<u>1 Medical Center Dr, Clarksburg, WV 26301</u>

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<u>Martinsburg VA Medical Center</u>	<u>510 Butler Ave, Martinsburg WV</u> <u>25405</u>
<u>Beckley VA Medical Center</u>	<u>200 Veterans Ave, Beckley WV</u> <u>25801</u>
<u>Hershel Williams VA Medical Center</u>	<u>1540 Spring Valley Dr.,</u> <u>Huntington, WV 25704</u>
<u>Washington DC VA Medical Center</u>	<u>50 Irving St. NW., Washington</u> <u>DC</u> <u>20422</u>

5.2.4. Other Non-VA Medical facilities and Community Care facilities as authorized by the VA.

5.2.5. Veteran's residence.

5.2.6. Local airports including: Baltimore/Washington International Thurgood Marshall Airport (BWI), Salisbury- Ocean City Wicomico Regional Airport (SBY), Hagerstown Regional Airport (HGR), Martin State Airport (MTN), Frederick Municipal State Airport (FDK), Easton Airport (ENL), Garret County Airport (W45), St. Mary's County Regional Airport(2W6), Greater Cumberland Regional Airport (CBE), Tipton Airport, Bay Bridge Airport, Cambridge -Dorchester Regional Airport, Carroll County Regional Airport (DMW), Crisfield/Somerset County Airport, Montgomery County Airpark, Ocean City Municipal Airport..

6. Quality Control Plan:

6.1. Quality Control:

6.1.1. The contractor shall maintain a Quality Control Plan (QCP) that contains, at a minimum, the following:

6.1.1.1. A description of the company's organizational structure including a description of the roles and responsibilities of management and supervisors.

6.1.1.2. A description of the methods to be used by the contractor for identifying and preventing deficiencies or problems in the quality of service.

6.1.1.3. A description of the specific steps the contractor will take for corrective action if needed if a deficiency or problem in the quality of service occurs.

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- 6.1.1.4. A description of the company's records and tracking system used to identify up-to-date background checks, applicable certifications and tests, and training of each employee performing services under this contract.
- 6.1.1.5. A description of the method (s) used to provide on-time non-emergent wheelchair transportation services to meet the requirements of this contract (24/7 availability).
- 6.1.1.6. A description of the methods used to identify and prevent radio communication breakdowns and a detailed procedure for alternative communications in the event of electronic and mechanical breakdown of vehicle two-way radios.
- 6.1.1.7. CONTINGENCY PLAN: (In case VetRide Vendor Portal is down) A description of the method/system used to log all service requests. The contractor shall confirm that the log indicates the date and time of service call, actual time of pick-up versus the scheduled time, name of patient requiring services, designated pick-up and delivery points, mileage, and actual waiting time at pick-up and delivery points if waiting charges are claimed. The contractor shall confirm that the log will be sent to the COR monthly.
- 6.1.2. The Government will evaluate the contractor's performance under this contract to ensure that the contractor's QCP is adequate, and that quality is achieved through a Quality Assurance Surveillance Plan (QASP).
- 6.1.3. The Government shall prepare a QASP after contract award derived from the PWS and contractor's submitted QCP. The QASP is a "living document" and the Government may review and revise it at any time. However, the Government shall coordinate changes to the QASP with the contractor.
- 6.1.4. The QASP will specify the work requiring surveillance and the Government's method of surveillance.
- 6.2. Minimum Performance Standards:
 - 6.2.1. The contractor shall maintain performance standards IAW the standards outlined in the table below. Failure to meet the Acceptable Quality Levels (AQL) may result in termination of the contract.
 - 6.2.2. The QASP will include the standards below as well as others derived from the successful offeror's QCP.

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Task	PWS Reference	Standard	Acceptable Quality Level	Method of Surveillance
Provide on-time non-emergent wheelchair van services	Section 4.5.1.7	Scheduled patient pick-ups shall not deviate more than 15 minutes past scheduled pick-up time for scheduled orders	97%	Customer Feedback
Incident Reporting	Section 4.8	The contractor shall notify the Program Manager, Beneficiary Travel Department, of any accidents and/or safety problems that occur while the patient is being transported. This notification shall occur within one (1) hour by telephone. A written report of the incident shall be delivered to the Program Manager, Benefits Management, by the close of business of the next working day.	97%	Customer Feedback
Invoice Reports	Section 4.9	Provide a monthly invoice including secondary documentation IAW Section 4.10 of the PWS	95%	100% inspection of monthly invoices/reports

7. COVID-19 Or Other Similar Infectious Diseases:

- 7.1. Contractor shall not refuse transports of COVID-19 positive or other similarly infected patients.
- 7.2. Contractor shall abide by all additional procedures and precautions that may be implemented by the VA based on VA-issued guidance and/or CDC recommendations. These procedures are subject to change throughout the life of the contract and will be incorporated via attachment (See APPENDIX B VTS Patient Transport PPE and Vehicle Cleaning/Disinfection SOP).
- 7.3. Contractor shall have written policy of steps they will take to prevent the spread of COVID-19 or other similarly infectious diseases by their employees and/or vehicles. This policy shall, at a minimum, include procedures of screening drivers before each shift, deliberate decontamination of their vehicles and all other preventative precautions taken by Contractor employees.

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7.4. Contractor shall furnish all required PPE throughout the life of the contract.

8. Conformity To Regulations:

8.1 The contractor and his/her operators shall conform to all Federal, State, and local regulations governing the performance of contracted services.

8.2 VAMC facilities have been designated NO SMOKING areas in their entirety. Individuals found in violation of this no smoking policy may be subject to a \$50.00 federal citation for disregarding posted safety rules and regulations. Furthermore, the contractor may be directed to stop work. The contractor is to notify all of his/her employees and/or sub-contractors of this strict enforcement policy.

9. Wage Rates:

9.1. Wage Determination(s) as listed in Section D in this solicitation are applicable to any resulting contract.

9.2. The contractor certifies by signature on this offer that the salaries to be paid workers involved in the performance of the contract are equal to or greater than those specified in the attached Wage Determination(s).

9.3 The Department of Labor has held that contractors must pay their employees the Service Contract Labor Standards wage while they are driving both to and from destinations for the VA. The Wage Determination is attached in Section D.

10. Evidence of Coverage:

10.1 Before commencing work under the contract, the contractor shall furnish the Contracting Officer with a certification from his/her insurance company indicating that the coverage outlined in this contract has been obtained and that it may not be changed or canceled during the term of the contract.

11. Workers' Compensation:

11.1 The Act of June 25, 1936, 42 Stat. 1938 (40 USC 290) authorized the constituted authority of the several states to apply their workmen's compensation laws to all lands and premises owned or held by the United States. The contractor agrees to procure and maintain, while the contract is in effect, Workers' Compensation and Employer's Public Liability insurance. The policy shall provide coverage for Public Liability Limits of not less than the statutory limitations for any one accident and at least meet the statutory limitations if more than one person is involved. Upon award of the contract, the contractor shall furnish to the Contracting Officer a certificate from its insurance company indicating that this coverage has been obtained and that such coverage may not be changed or canceled unless 30 days' advance written notice is provided to the Contracting Officer.

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12. Contractor Personnel Security Requirements:

- 12.1 All contractor employees who require access to the Department of Veterans Affairs' computer systems or who come into contact with veteran/beneficiaries shall be the subject of a background investigation and must receive a favorable adjudication from the VA Office of Security and Law Enforcement before contract performance. This requirement is applicable to all subcontractor personnel requiring the same access. If the investigation is not completed before the start date of the contract, the contractor will be responsible for the actions of those individuals they provide to perform work for the VA.

Position Sensitivity - The position sensitivity for this contract has been designated as LOW RISK.

Background Investigation - The level of background investigation commensurate with the required level of access for this contract is National Agency Check with Written Inquiries.

Contractor Responsibilities:

- The contractor shall pre-screen all personnel requiring VA access to ensure they maintain a U.S. citizenship and are able to read, write, speak, and understand the English language.
- The contractor shall submit or have their employees submit the following required forms requested by Department of Veterans Affairs, Office of Security and Law Enforcement, Security and Investigations Center, 2200 Fort Roots Drive Bldg. 104, North Little Rock, AR 72114 within 30 days of receipt:
 - All documents completed and submitted at the following website:
<http://www.va.gov/SECURITYINVESTIGATIONSCENTER/>
- The contractor, when notified of an unfavorable determination by the Government, shall withdraw the employee from consideration from working under the contract. Failure to comply with the contractor personnel security requirements may result in termination of the contract or cause.

The contractor shall agree that all deliverables, associated working papers, and other material deemed relevant by the contractor in the performance of this task order are the property of the United States Government. The contractor shall agree that all individually identifiable health information shall be treated with the strictest confidentiality. Access to records shall be limited to essential personnel only. Records shall be secured when not in use. At the conclusion of the contract, all copies of individually identifiable health records shall be destroyed or returned to the VA. Any individually identifiable health records shall be deleted from computers not belonging to the VA. The contractor shall comply with the Privacy Act, 38 U.S.C. 5701, 38 U.S.C. 7332, and 5 U.S.C. 552(a) et. Seq.

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Contractor staff shall sign confidentiality statements before the start date of the contract. The contractor shall comply with all provisions of the Health Information Portability and Accountability Act (HIPAA), including but not limited to privacy, security of electronic health data, and adherence to standards and code sets as required by HIPAA. The contractor shall ensure the confidentiality of all patient and employee information and shall be held liable in the event of breach of confidentiality. Any person, who knowingly or willingly discloses confidential information obtained from the VA with non-essential persons, may be subject to fines.

12.1.1 HIPAA COMPLIANCE. HIPAA compliance is required. The contractor must adhere to the provisions of Public Law 104-191, Health Insurance Portability and Accountability Act (HIPAA) of 1996 and the National Standards to Protect the Privacy and Security of Protected Health Information (PHI). As required by HIPAA, the Department of Health, and Human Services (HHS) has promulgated rules governing the security and use and disclosure of protected health information by covered entities, including the Department of Veterans Affairs (VA). IAW HIPAA, the contractor may be required to enter into a Business Associate Agreement (BAA) with VA.

12.1.2 BLOOD BORNE PATHOGENS: The contractor and the employees provided, pursuant to this contract, shall comply with the effective VAMC Policy (and Occupational Health requirements IAW OSHA Blood Borne Pathogens (BBP) Law and the OSHA Tuberculosis Compliance Directive, enforceable under OSHA's General Duty Clause) governing health care workers infected with a blood borne pathogen. If the contractor obtains information that a health care worker providing care pursuant to this agreement may be infected with a blood borne pathogen, the contractor will advise the Contracting Officer immediately.

13. Medical Liabilities Insurance:

13.1 The contractor shall carry required insurance (See VAAR Clause 852.237-7 INDEMNIFICATION AND MEDICAL LIABILITY INSURANCE) and vehicle insurance IAW the Maryland Department of State Health Services.

14. Annual VHA Training:

14.1 IAW VHA Directive 2003-028 "Compliance and Business Integrity Program", its updates or replacement directives, IG Guidance at 8994, Section II(C); Guidance at 4875, Section III (B)(4) Sentencing Guidelines, Section 8B2.1

(b) (4) (B) annual compliance training is to be provided to all contractors within the scope of their work. The medical center CORs are to coordinate the annual training with their respective Contracting Officer and Compliance and Business Integrity Officers. A copy of the documentation of the completed annual training is to be provided to the Compliance and Business Integrity Officers for their files.

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14.2 IAW VHA Directive 1605.01 "Privacy and Release of Information", updates or replacement directives, annual VHA Privacy Policy Training is to be provided to all contractors within the scope of their work. A copy of the documentation of the completed annual training is to be provided to the Contracting Officer and the facility's Privacy Officer for their files.

14.3 IAW VA Directive 6500, "Information Security Program", updates or replacement directives, annual VHA Cyber and Security Information Training is to be provided to all contractors within the scope of their work. A copy of the documentation of the completed annual training is to be provided to the Contracting Officer and the facility's Information Security Officer for their files.

15. Conformance with Environmental Management Systems:

15.1 The contractor shall perform work under this contract consistent with the relevant policy and objectives identified in the agency, organizational, or facility environmental management system (EMS) applicable for your contract. The contractor shall perform work in a manner that conforms to all appropriate Environmental Management Programs and Operational Controls identified by the agency, organizational, or facility EMS, and provide monitoring and measurement information as necessary for the organization to address environmental performance relative to the environmental, energy, and transportation management goals. In the event an environmental nonconformance or noncompliance associated with the contracted services is identified, the contractor shall take corrective and/or preventative actions. In the case of a noncompliance, the contractor shall respond and take corrective action immediately. In the case of a nonconformance, the contractor shall respond and take corrective action based on the time schedule established by the EMS Site Coordinator. In addition, the Contractor shall ensure that their employees are aware of the roles and responsibilities identified by the environmental management system and how these requirements affect their work performed under this contract.

All on-site contractor personnel shall complete yearly EPA sponsored environmental training specified for the type of work conducted on-site. Upon contract award, the Contracting Officer's Representative will notify the facility-level Environmental Management Systems Coordinator to arrange EMS training for appropriate staff.

16. Contractor Performance Assessment Rating System (CPARS):

Required Registration with Contractor Performance Assessment Rating System (CPARS)

16.1 As prescribed in Federal Acquisition Regulation (FAR) Part 42.15, the Department of Veterans Affairs (VA) evaluates contractor past performance on all contracts that exceed \$250,000 and shares those evaluations with other Federal Government contract specialists and procurement officials. The FAR requires that the contractor be provided an opportunity to comment on past performance evaluations prior to each report closing. To fulfill this requirement VA uses an online database. The CPARS database information is shared with the Past Performance Information Retrieval System (PPIRS) database, which is available to all Federal Agencies.

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16.2 A contractor whose contract award is estimated to exceed \$1,000,000 is required to register with the Contractor Performance Assessment Rating System (CPARS) database at the following <https://www.cpars.gov/>

or by calling (207) 438-1690. Registration should occur no later than thirty days after contract award and must be kept current should there be any change to the contractor's registered representative.

16.3 For contracts with a period of one year or less, the contracting officer will perform a single evaluation when the contract is complete. For contracts exceeding one year, the contracting officer will evaluate the contractor's performance annually. Interim reports will be filed each year until the last year of the contract when the final report will be completed. The report shall be assigned in CPARS to the contractor's designated representative for comment. The contractor representative will have thirty days to submit any comments and re-assign the report to the VA contracting officer.

16.4 Failure to have a current registration in the CPARS database, or to re-assign the report to the VA contracting officer within those thirty days, will result in the Government's evaluation being placed on file in the database with a statement that the contractor failed to respond.

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Surveillance Checklist

(Baltimore VAMC)

Contract: Non-Emergent Wheelchair Transportation	Date/Time of Inspection:	Government POC Primary: Government POC Alternate:
Organization: (Baltimore VAMC)	Location: Bldg. Post	

SS	Performance Objective	PWS Para	Performance Threshold	Method of Surveillance	Met	Not Met	Remarks
SS1	The contractor shall provide Non-Emergent wheelchair van service, 24 hours per day, 365 days per year, as required IAW the terms and conditions contained herein.	1	95% Compliance	100% Surveillance of each patient pick-up.			
SS2	The objective of the Standards for Maintenance is to protect veterans and to cause no harm to all parties. The contractor shall maintain all vehicles in a clean and orderly condition, free from debris and accumulations that may create an accident, injury, or fire hazard.	4.4.3	95% Compliance	100% Surveillance			

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SS3	The contractor shall maintain (and furnish upon request) procedures that outline preventive maintenance and/or repairs on each vehicle in an individual vehicle file and in chronological order, latest service on top. A statement from the Contractor indicating compliance of vehicle maintenance files is in place should be submitted at time of offer for evaluation purposes.	4.4.3	95% Compliance	100% Surveillance			
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SS	Performance Objective	PWS Para	Performance Threshold	Method of Surveillance	Met	Not Met	Remarks
	Requested submission and verification of these documentation requirements will be a quality assurance procedure during the contract period.						
SS4	The contractor shall furnish qualified personnel as required by contract specifications to accomplish all services under this contract.	4.3.1	100% Compliance	100% Surveillance			